DERRICK LAMONT BEVERLY
Defendant, In Propria Persona Sui Juris
c/o 1738 N. Las Palmas Avenue
Los Angeles, California 90028
Mailing: 1929 Wilcox Avenue, Apt. #1
Hollywood, California 90068
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Electronically FILED by
Superior Court of California,
County of Los Angeles
2/02/2026 12:00 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By D. Diaz, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA,
COUNTY OF LOS ANGELES
CENTRAL DISTRICT – JURISDICTION
STANLEY-MOSK SUPERIOR COURTHOUSE

FOX NORMANDIE APARTMENTS, LP,	**Case No.: 22STUD06657**
Plaintiff,	**[UNLAWFUL DETAINER]**
vs.	**NOTICE OF MOTION AND MOTION TO VACATE AND MODIFY SANCTIONS**
DERRICK L. BEVERLY,	
Defendant.	**ORDER; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF DERRICK LAMONT BEVERLY; EXHIBIT LIST; NOTICE OF PROOF AND PROOF OF ELECTRONIC SERVICE**

Hearing Date: March 11, 2026 Hearing Time: 8:30 a.m.
Dept.: 91 Judge: Hon. Upinder F. Madokoro
Complaint Filed: 2022
OSC re Sanctions: Jan. 20, 2026
Sanctions Order: Jan. 20, 2026

UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE

NOTICE OF MOTION AND MOTION TO VACATE AND MODIFY SANCTIONS ORDER

TO ALL PARTIES AND TO THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on March 11, 2026, at 8:30 a.m., or as soon thereafter as the matter may be heard in Department 91 of the above-entitled Court, located at 111 North Hill Street, Los Angeles, California 90012, defendant and judgment debtor DERRICK LAMONT BEVERLY ("Defendant"), in propria persona, will and hereby does move the Court for an order vacating and/or modifying the sanctions order issued on January 20, 2026 in connection with the Court's Order to Show Cause re Sanctions ("Sanctions Order").

This Motion is made pursuant to Code of Civil Procedure sections 128.7(d) and 177.5, the Court's inherent authority to reconsider and modify its orders to prevent injustice and to ensure due process, and on the following grounds:

1. Defendant's prior ex parte filings and Opposition to OSC re Sanctions were submitted in good faith and were not presented primarily for an improper purpose such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation;

2. All procedural and formatting defects previously identified by the Court and/or highlighted by Plaintiff—including defects in ex parte notice, proofs of electronic service, captions, contact information, and serial ex parte practice—have now been cured, as reflected in Defendant's concurrently filed Notice of Notice and Errata, Errata Packet Index, and Corrected Proofs of Electronic Service;

3. Defendant's apparent "non-appearance" at the January 20, 2026 sanctions hearing was not willful; Defendant checked in via LACourtConnect, received an error preventing participation, and was simultaneously experiencing a medically documented illness (upper respiratory infection) around January 21–23, 2026, as shown by his Kaiser work status note;

4. The monetary sanctions amount sought and/or imposed is excessive and unduly punitive as applied to an unhoused, indigent, self-represented defendant, is not "limited to what is sufficient to deter repetition" as required by CCP § 128.7(d), and is not adequately supported by detailed time records or a non-abusive proportionality analysis; and

5. Subsequent filing issues—including a One Legal e-filing rejection for "incorrect document type for motion" and the need to obtain a hearing date

directly from Department 91—have been addressed in good faith, further demonstrating course correction rather than disregard of Court procedures.

Defendant respectfully requests that the Court:

(a) Vacate the January 20, 2026 Sanctions Order in its entirety; or, in the alternative,

(b) Substantially reduce any monetary sanctions to a nominal amount that is truly limited to what is necessary to deter repetition under CCP § 128.7(d); and

(c) Provide clear, prospective guidance regarding any further filings in this matter and the appropriate procedural vehicles for addressing Defendant's remaining due process concerns.

This Motion is based upon this Notice, the attached Memorandum of Points and Authorities, the concurrently filed Declaration of Derrick LaMont Beverly and Exhibits H through L, Defendant's previously filed Opposition to OSC re Sanctions and Errata Packet, the Court's records and file in this action, and such further evidence and argument as may be presented at or before the hearing.

DATED:

January 31st, 2026 **Respectfully submitted,**

_____

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona Sui Juris

MEMORANDUM OF POINTS AND AUTHORITIES

IN SUPPORT OF MOTION TO VACATE AND MODIFY SANCTIONS ORDER AND OPPOSITION TO SANCTIONS (CCP § 128.7; § 177.5)

I.

INTRODUCTION

Defendant and judgment debtor DERRICK LAMONT BEVERLY ("Defendant") respectfully moves this Court to vacate and/or modify its January 20, 2026 Sanctions Order entered following the Court's Order to Show Cause re Sanctions.

Defendant does not dispute that his earlier ex parte filings and related papers suffered from procedural deficiencies, including imperfect ex parte notice, caption inconsistencies, and proof-of-service errors. Nor does Defendant dispute that this Court admonished him in prior minute orders about continuing to file serial ex parte papers in a completed unlawful detainer action.

What the Sanctions Order does not fully account for, however, are the following facts:

(1) Defendant is unhoused, indigent, and self-represented; he has been attempting in good faith to obtain some form of judicial review of a default judgment and Sheriff lockout that resulted in his homelessness;

(2) Defendant has now undertaken comprehensive corrective steps, including a consolidated Motion to Vacate Default and Default Judgment, a Sanctions Opposition, and a detailed Errata Packet that cures identified defects in ex parte notice, proofs of service, captioning, and contact information;

(3) Defendant's perceived "non-appearance" at the January 20, 2026 sanctions hearing was not a deliberate refusal to attend; Defendant checked in via LACourtConnect, encountered a documented error that blocked participation, and was simultaneously dealing with a medically documented upper respiratory infection, as confirmed by his Kaiser work status note; and

(4) The sanctions amount sought and/or imposed—based on an hourly rate of approximately $460 and more than ten hours of "sanctions-related" attorney

work—is functionally uncollectible from an unhoused litigant and operates as a punitive measure, without the level of itemized detail and proportionality that would demonstrate non-abusive billing and necessity.

Defendant has now filed a dedicated Notice of Notice and Errata, Errata Packet Index, and Corrected Proofs of Electronic Service specifically to ensure that the record accurately reflects the service methods actually used (email only), the correct service times, and Defendant's standardized contact information. See concurrently filed Notice of Notice and Errata, Errata Packet Index, and Corrected Proofs of Electronic Service.

Under these circumstances, CCP § 128.7(d)'s requirement that any sanctions be "limited to what is sufficient to deter repetition," combined with CCP § 177.5 and due process principles, strongly supports vacating or at least substantially reducing the sanctions order.

II.

BACKGROUND

This case arises from a 2022 unlawful detainer action, Fox Normandie Apartments,

LP v. Derrick L. Beverly, Case No. 22STUD06657, which resulted in a default judgment and a Sheriff lockout on or about January 26, 2023. Defendant has been unhoused since that lockout.

In 2025, Defendant—without counsel—filed a series of ex parte applications and motions seeking to vacate the default judgment, stay enforcement, and obtain relief under CCP §§ 473(b), 473(d), 1179, and 918. Some of those filings were denied or rejected for procedural reasons, including insufficient ex parte notice declarations, unclear prayers for relief, and proof-of-service issues. The Court issued admonitions warning that continued filing of procedurally defective papers could lead to sanctions.

Plaintiff thereafter sought monetary sanctions under CCP § 128.7 and related authority, claiming Defendant's filings were frivolous and filed for an improper purpose. An OSC re Sanctions was set for January 20, 2026 at 8:30 a.m. in Department 91.

Defendant prepared and filed an Opposition to OSC re Sanctions with a supporting Declaration and exhibits. Defendant also registered for the January 20, 2026

hearing through LACourtConnect, checked in the morning of the hearing, and captured screenshots showing (a) successful check-in and (b) a subsequent error preventing him from entering the virtual courtroom. See Exhibits H and I.

Around that same period, Defendant was experiencing an upper respiratory infection and related symptoms; his Kaiser work status note places him off work for January 21–23, 2026 due to illness. See Exhibit J.

Following the January 20, 2026 hearing—at which Defendant was treated as absent due to the LACourtConnect error—the Court issued its Sanctions Order. Defendant has since filed a detailed Errata Packet correcting proofs of service, removing boilerplate mail language for documents that were in fact served electronically only, and standardizing his contact information.

On or about January 27, 2026, Defendant attempted to e-file a Motion to Vacate and Modify Sanctions Order via One Legal. That filing was rejected with the notation "Incorrect document type for motion. Please contact Department 91 to reserve a court date for motion." Defendant then called Department 91, spoke

with the clerk, and reserved March 11, 2026 at 8:30 a.m. as the hearing date for this Motion. The clerk, identifying himself as "Christian," confirmed the date and reminded Defendant to file the motion within three days. See Exhibits K and L.

III.

LEGAL STANDARD UNDER CCP §§ 128.7(d) AND 177.5

Code of Civil Procedure section 128.7, modeled on Federal Rule of Civil Procedure 11, requires an attorney or unrepresented party who presents a pleading, petition, motion, or other paper to certify that, after an inquiry reasonable under the circumstances:

(1) the paper is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation; and

(2) the claims, defenses, and other legal contentions are warranted by existing

law or by a non-frivolous argument for extending, modifying, or reversing existing law.

(CCP § 128.7(b)(1)–(2).)

If sanctions are imposed, section 128.7(d) provides that the sanction "shall be limited to what is sufficient to deter repetition of such conduct or comparable conduct by others similarly situated." The standard is objective reasonableness, assessed in light of the circumstances confronting the party at the time, including self-represented status, complexity, and access to resources.

Separately, Code of Civil Procedure section 177.5 permits a trial court to impose sanctions for violation of a lawful court order, but again only "in an amount not to exceed fifteen hundred dollars ($1,500)" and only where the

violation is "without good cause or substantial justification."

Both provisions are grounded in deterrence, not punishment, and must be applied with sensitivity to due process concerns, particularly where the sanctioned party is indigent and self-represented.

The Court also retains inherent authority to reconsider and modify its own orders where justice so requires, including in response to newly presented facts (such as documented LACourtConnect system errors and medical evidence) that undermine prior assumptions about willful non-compliance.

IV.
ARGUMENT

A.
Defendant's Filings Were Good-Faith Attempts to Obtain Review, Not Harassing

Defendant acknowledges that he filed multiple ex parte applications and motions in 2025 related to the 2022 default judgment and Sheriff lockout. These filings were motivated by an urgent need to obtain some judicial review of a default that Defendant believes was entered without meaningful notice or opportunity to be heard and that led directly to his homelessness.

While the Court and Plaintiff may characterize these filings as "serial" or procedurally deficient, the question under CCP § 128.7(b)(1) is whether they were presented "primarily for an improper purpose." Defendant respectfully submits that his filings were not. As an unhoused, indigent litigant without counsel, Defendant was trying—however imperfectly—to navigate a complex post-judgment landscape. His filings targeted issues of service, default, forfeiture, and due process, not Plaintiff personally.

The record also shows that opposing counsel did not always meet the same level of written, documented objection that Defendant is now being sanctioned for allegedly failing to meet. Certain complaints about Defendant's perceived non-compliance were raised orally in hearings without matching written documentation, yet only Defendant faces monetary sanctions, amplifying the appearance of asymmetrical enforcement rather than neutral deterrence.

B.

All Procedural Defects Have Been Cured

All procedural defects previously identified by the Court and/or highlighted by Plaintiff have now been cured, including: (1) corrected electronic proofs of service with accurate case number, service method (email-only), and service

time; (2) standardized contact information and caption formatting; and (3) consolidation of Defendant's requests for relief into a single, fully supported motion rather than serial ex parte applications.

Defendant has filed a dedicated Notice of Notice and Errata, Errata Packet Index and Exhibit 1 (Errata Items) that: (a) removes inaccurate boilerplate references to U.S. Mail service where no mailing actually occurred; (b) clarifies that service for the filings at issue was performed solely by electronic mail to Plaintiff's designated electronic service address, eservice@loacs.com, with courtesy copies to individual attorney email addresses; (c) standardizes Defendant's telephone number and mailing address; and (d) eliminates duplicate or stray caption blocks.

See concurrently filed Notice of Notice and Errata, Errata Packet Index, Exhibit 1 – Errata Items, and Corrected Proofs of Electronic Service.

These corrections demonstrate that Defendant has taken the Court's criticisms seriously and has actively cured the issues, rather than continuing any defective pattern.

C.

LACourtConnect Tech Failure and Defendant's Illness Undermine Any Inference

of Willful Non-Compliance at the January 20, 2026 Hearing

The Sanctions Order appears to treat Defendant as having failed to appear for the January 20, 2026 OSC re Sanctions hearing. Defendant respectfully submits that this conclusion does not reflect the full factual context.

Defendant registered for the January 20 hearing via LACourtConnect, checked in at approximately 6:00 a.m., and captured a screenshot confirming his check-in. See Exhibit H (CourtConnect check-in screenshot). When Defendant later attempted to join the 8:30 a.m. session, he received an on-screen error message blocking entry, which he also captured and preserved. See Exhibit I (CourtConnect error screenshot).

In addition, Defendant was experiencing an upper respiratory infection and related symptoms in the same timeframe; his Kaiser note places him off work for January 21–23, 2026 due to illness. See Exhibit J (Kaiser work status note). Defendant has also reached out to LACourtConnect Support requesting confirmation of his registration and any error logs and has not received a substantive response to date, despite following up.

Under these facts, treating Defendant's non-participation as willful non-appearance is not consistent with due process. The better view is that a combination of documented tech failure and illness impaired his ability to

participate, and that this weighs against punitive sanctions.

D.

Sanctions of this Magnitude Are Excessive and Unduly Punitive Given Defendant's Status and the Deterrent Purpose of CCP § 128.7(d)

Plaintiff seeks, and the Court has indicated an intent to impose, monetary sanctions based on more than ten hours of attorney time at a rate of approximately $460 per hour. For a self-represented, unhoused, indigent litigant, such an award is effectively uncollectible and functions as a punishment, not a targeted deterrent.

Section 128.7(d) expressly limits sanctions to "what is sufficient to deter repetition" of the challenged conduct. Where a litigant has already taken meaningful corrective steps—errata; corrected POS; consolidated filings; and adherence to the designated electronic service address—the marginal deterrent value of a large monetary sanction is minimal. The real effect is to deepen the burden on an already vulnerable party without materially improving compliance.

Further, the sanctions request attributes a substantial block of time to vague descriptions such as "reviewed moving papers" and "drafted opposition," without a transparent, itemized accounting that would allow the Court to meaningfully

assess proportionality or weed out any sanction-seeking padding. If sanctions are intended as a last-resort remedy against abusive practices, they should not be based on a billing narrative that itself is insulated from scrutiny.

In light of Defendant's status and his demonstrated course correction, the sanctions sought are excessive and should be vacated or reduced to a nominal amount.

E.

Filing Rejection via One Legal and Subsequent Cure (Exhibit K) Further Demonstrate Ongoing Good-Faith Efforts to Comply with Court Procedures

On or about January 27, 2026, Defendant submitted a prior version of this Motion to Vacate and Modify Sanctions Order for electronic filing via One Legal. That submission was rejected with the notation: "Incorrect document type for motion. Please contact Department 91 to reserve a court date for motion." See Exhibit K (One Legal eFiling rejection, Order #27320557).

Defendant has treated this rejection as a clerical / administrative issue, not a merits ruling. Consistent with the clerk's instruction, Defendant called Department 91, confirmed the case number and nature of the motion, and then received a call back from the clerk, "Christian," confirming that the next available hearing date is March 11, 2026 at 8:30 a.m. in Department 91 and that Defendant should file his motion within three days of the reservation. See Exhibit L (Dept. 91 call transcript).

Defendant now re-files the Motion under the correct document type, with the Court's instructions fully implemented. Far from supporting a narrative of willful disobedience, Exhibits K and L show Defendant repeatedly seeking to follow the rules and correct technical mistakes.

V.

CONCLUSION

For the foregoing reasons, Defendant respectfully requests that the Court:

1. Vacate its January 20, 2026 Sanctions Order in its entirety and discharge the OSC re Sanctions; or, in the alternative,

2. Substantially reduce any monetary sanctions to a nominal amount that is truly limited to what is necessary to deter repetition under CCP § 128.7(d), taking into account Defendant's indigent, unhoused status and his extensive corrective efforts; and

3. Provide clear, prospective guidance regarding the scope of any further permissible filings in this case and the proper procedural vehicles for Defendant's remaining due process concerns.

UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE

DATED: January 31st, 2026 **Respectfully submitted,**

_____

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona Sui Juris

DECLARATION OF DERRICK LAMONT BEVERLY

IN SUPPORT OF MOTION TO VACATE AND MODIFY SANCTIONS ORDER

UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE

I, DERRICK LAMONT BEVERLY, declare:

1. I am the defendant and judgment debtor in this action, Fox Normandie Apartments, LP v. Derrick L. Beverly, Los Angeles Superior Court Case No. 22STUD06657. I make this declaration in support of my Motion to Vacate and Modify Sanctions Order. I have personal knowledge of the facts set forth herein and, if called as a witness, could and would competently testify thereto.

2. I am self-represented ("in propria persona") and currently living in unstable housing conditions after being locked out by the Sheriff on or about January 26, 2023. I am indigent and do not have the financial resources to pay significant monetary sanctions.

3. I do not have formal legal training. My filings in this unlawful detainer case have been prepared while I have been unhoused and working with inconsistent access to technology, internet, and printing resources. I have nevertheless tried to comply with the Code of Civil Procedure and the California Rules of Court, and I have attempted to correct errors once they were brought to my attention.

Procedural Defects and Errata Packet

4. I understand that the Court and Plaintiff have identified various procedural and formatting defects in some of my earlier filings, including ex parte applications and my original Sanctions Opposition. These defects included incomplete ex parte notice declarations, proofs of service with inaccurate mail language or timestamps, and inconsistent captions and contact information.

5. Upon becoming aware of these concerns, I worked to correct them. With assistance, I prepared and filed a Notice of Notice and Errata, an Errata Packet Index, and a detailed Exhibit 1 – Errata Items, along with corrected proofs of electronic service. In those errata documents, I clarified that for specific filings I had used electronic service only and that prior boilerplate language referencing U.S. Mail service was inaccurate for those documents.

6. I have now standardized my contact information in this case as follows:

UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE

c/o 1738 N. Las Palmas Avenue

Los Angeles, California 90028

Mailing: 1929 Wilcox Avenue, Apt. #1

Hollywood, California 90068

Telephone: (213) 915-9450

Email: dlb@dlbllclaw.com / derniercrilamont@yahoo.com

I am using this information consistently in my current filings, including this Motion.

7. On January 9, 2026, Plaintiff's office confirmed in writing that "eservice@loacs.com" is the designated email address for electronic service of documents and ex parte notice in this case. Since that time, I have used eservice@loacs.com as the primary electronic service address, with any individual attorney email addresses included only as courtesy copies.

LACourtConnect Check-In and Error (Exhibits H and I)

8. An OSC re Sanctions hearing was set for January 20, 2026 at 8:30 a.m. in Department 91. I registered for the hearing via LACourtConnect and checked in early that morning.

9. I took a screenshot showing that I had successfully checked in to the January 20, 2026 hearing. A true and correct copy of that screenshot is attached hereto as Exhibit H (CourtConnect check-in).

10. Later, when I attempted to join the 8:30 a.m. session, I received an error message that prevented me from entering the virtual courtroom. I captured a screenshot of that error as well. A true and correct copy of that error screenshot is attached as Exhibit I (CourtConnect error).

11. Because of the LACourtConnect error, I was not able to participate in the January 20, 2026 hearing, even though I had checked in and was attempting to attend. I did not intentionally fail to appear or ignore the Court.

Medical Illness (Exhibit J)

12. Around that same time period, I was experiencing an upper respiratory infection and related symptoms. Kaiser issued a work status note placing me off work from January 21, 2026 through January 23, 2026 due to illness. A true and correct copy of that work status note is attached as Exhibit J.

13. My illness made it more difficult for me to manage my filings and hearing participation, but I still attempted to attend the January 20 hearing via LACourtConnect and to comply with Court orders.

Contact with LACourtConnect Support

14. After encountering the LACourtConnect error, I contacted LACourtConnect Support seeking written confirmation that I had registered and checked in and requesting any available error logs or notes about my attempted connection. As of the date of this declaration, I have not received a substantive written response. I have preserved copies of my correspondence for my records and for use in future filings if needed.

Opposing Counsel's Sanctions Request and Lack of Detailed Billing

15. I understand that Plaintiff seeks monetary sanctions based on an hourly rate of approximately $460 and more than ten hours of time described in general terms such as "reviewed moving papers" and "drafted opposition." I have not seen a detailed, line-item invoice that transparently explains each increment of time, the specific task performed, and why that work was reasonably necessary rather than opportunistically aggregated for a sanctions request.

16. In contrast, my own filings—however imperfect—have been aimed at curing defects, consolidating my requests, and correcting misunderstandings about service and ex parte practice. I believe the sanctions amount is excessive compared to my actual impact on the case and the significant procedural issues I have already cured.

One Legal Rejection and Dept. 91 Hearing Reservation (Exhibits K and L)

17. On or about January 27, 2026, I submitted a prior version of this Motion to Vacate and Modify Sanctions Order for electronic filing via One Legal. The submission was rejected with the message, "Incorrect document type for motion. Please contact Department 91 to reserve a court date for motion." A true and correct copy of that rejection notice, including Order #27320557 and the clerk's notation, is attached as Exhibit K.

18. Following that rejection, I called Department 91 as instructed. During the call, the clerk confirmed my case number and the nature of my motion, and later called me back. The clerk, who identified himself as "Christian," informed me that the next available hearing date for my Motion to Vacate and Modify Sanctions Order is March 11, 2026 at 8:30 a.m. in Department 91, and reminded me to file my motion within three days of the reservation. A true and correct transcript of those calls is attached as Exhibit L.

19. I understand that I was required to re-submit my motion under the correct "motion" document type and with the reserved hearing date. I am doing that

now with this filing. I am not attempting to avoid any hearing or Court order; I am trying to follow the clerk's instructions and to keep the record accurate.

Good-Faith Intent and Need to Vacate / Modify Sanctions Order

20. My intent in filing ex parte applications, my earlier Opposition to OSC re Sanctions, the Errata Packet, and this Motion has never been to harass Plaintiff or to drive up costs. I am trying to correct what I believe are serious due process problems related to notice, default, and post-judgment enforcement that left me homeless.

21. I recognize that my learning process has contributed to additional work for Plaintiff and the Court. However, I have now: (a) consolidated my requests into a noticed Motion; (b) corrected proofs of service, captions, and contact information; (c) clarified that my current service method is email-only to eservice@loacs.com; and (d) addressed the LACourtConnect tech failure and medical issues that contributed to my non-participation on January 20, 2026.

22. In light of these facts and the deterrent purposes of CCP §§ 128.7(d) and 177.5, I respectfully believe that vacating or substantially reducing the

sanctions is warranted and that additional monetary punishment is not necessary to prevent future procedural problems.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on January 31st, 2026, at Los Angeles, California.

_____

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona Sui Juris

EXHIBIT LIST

Exhibit H – LACourtConnect Check-In Screenshot (Jan. 20, 2026)

Screenshot showing Defendant's successful check-in for the January 20, 2026 OSC re Sanctions hearing in Department 91.

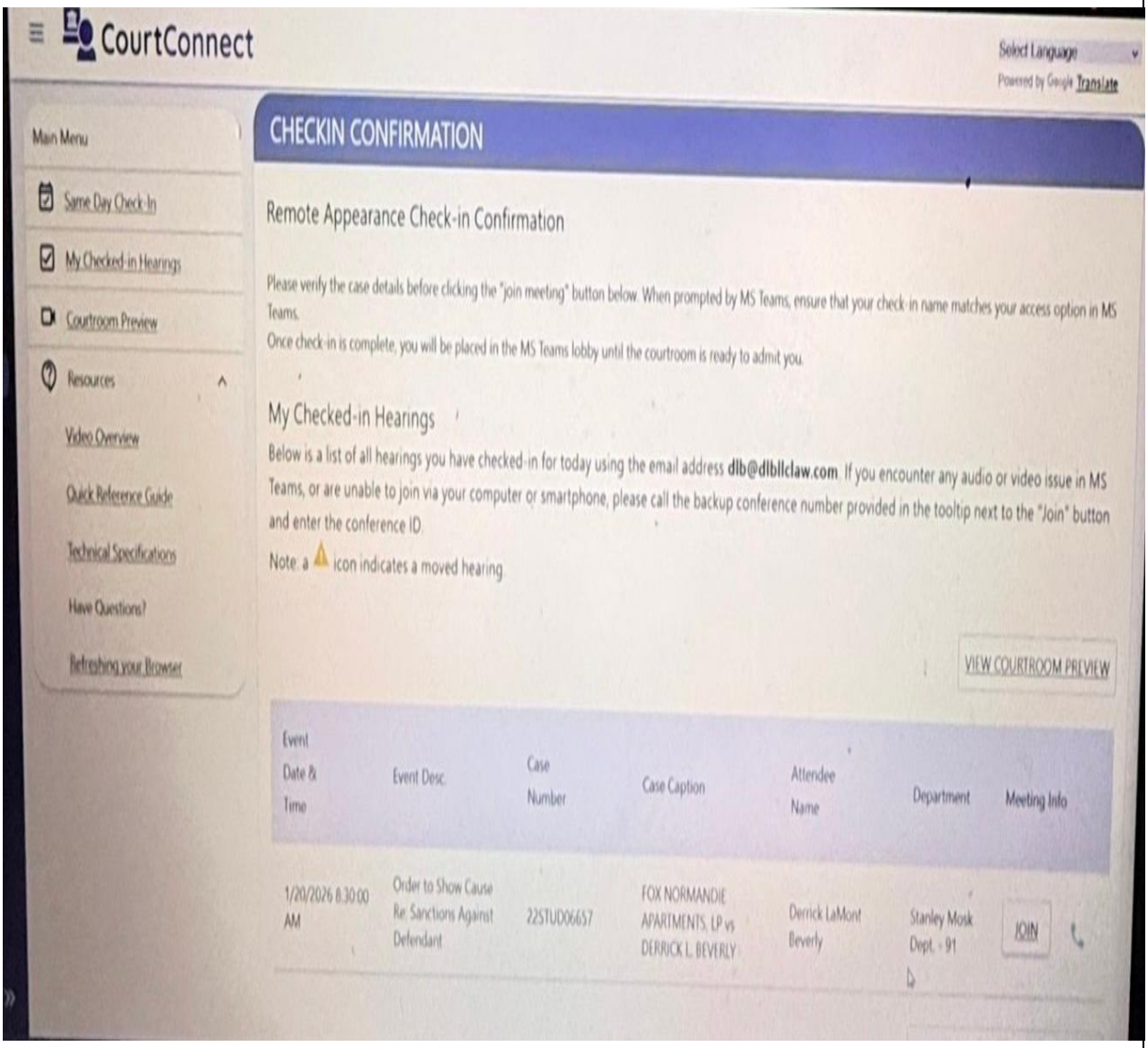


Exhibit I – LACourtConnect Error Screenshot (Jan. 20, 2026)

Screenshot showing the error that prevented Defendant from entering the virtual courtroom for the January 20, 2026 hearing.

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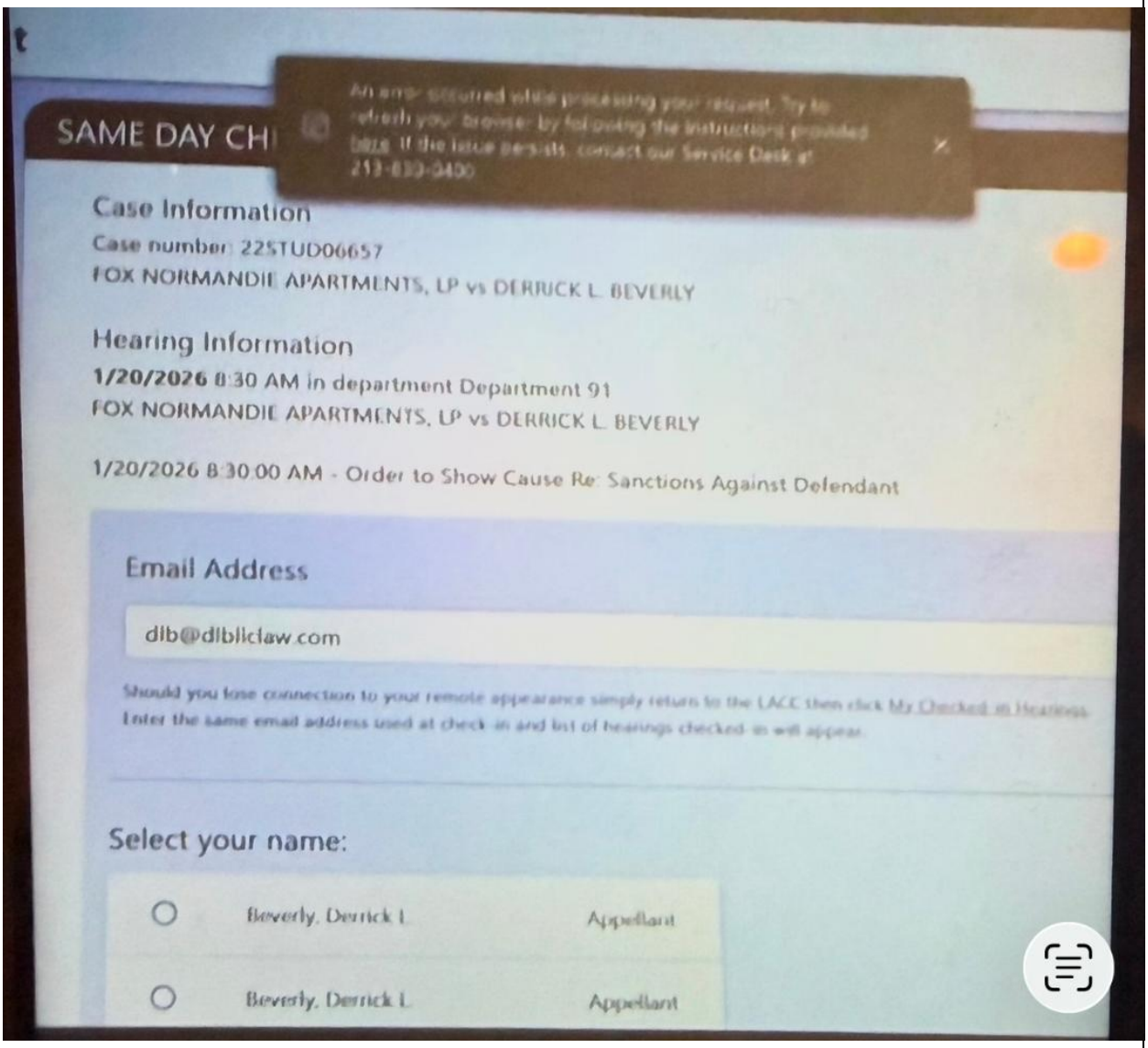
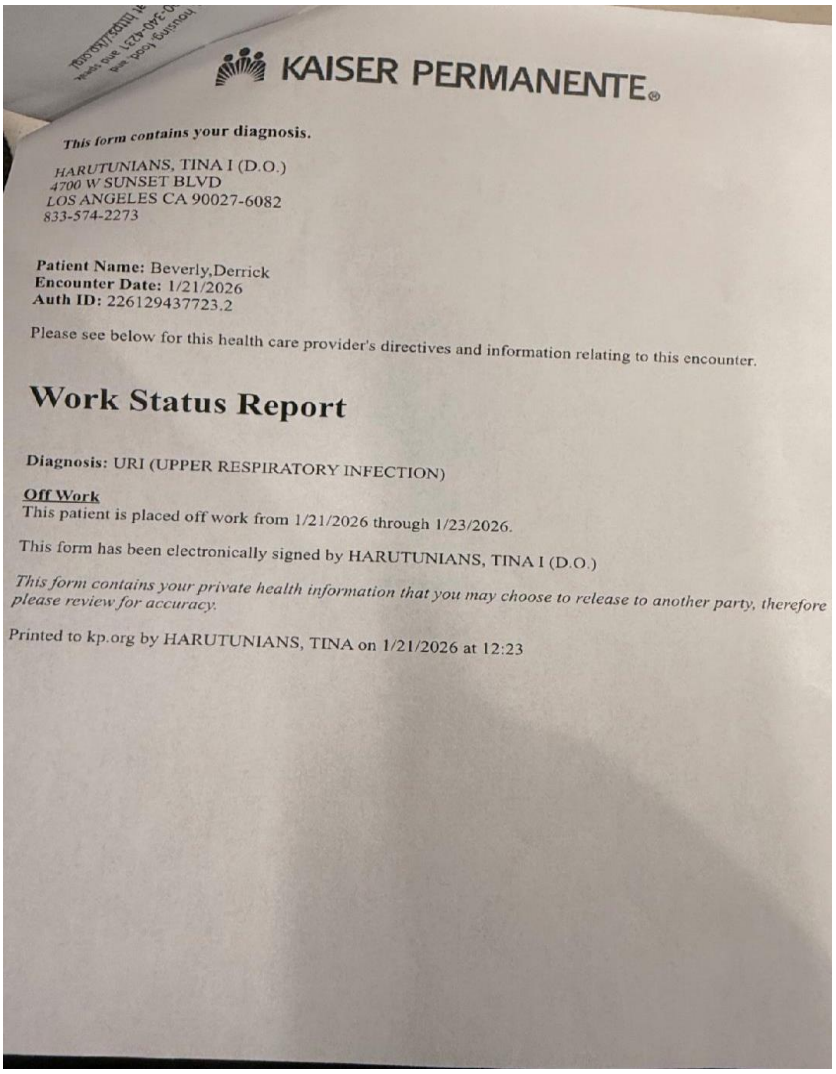


Exhibit J – Kaiser Work Status Note (Upper Respiratory Infection)

Kaiser note placing Defendant off work for January 21–23, 2026

UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE

due to upper respiratory infection and related symptoms.



KAISER PERMANENTE®

This form contains your diagnosis.

HARUTUNIANS, TINA I (D.O.)
4700 W SUNSET BLVD
LOS ANGELES CA 90027-6082
833-574-2273

Patient Name: Beverly,Derrick
Encounter Date: 1/21/2026
Auth ID: 226129437723.2

Please see below for this health care provider's directives and information relating to this encounter.

Work Status Report

Diagnosis: URI (UPPER RESPIRATORY INFECTION)

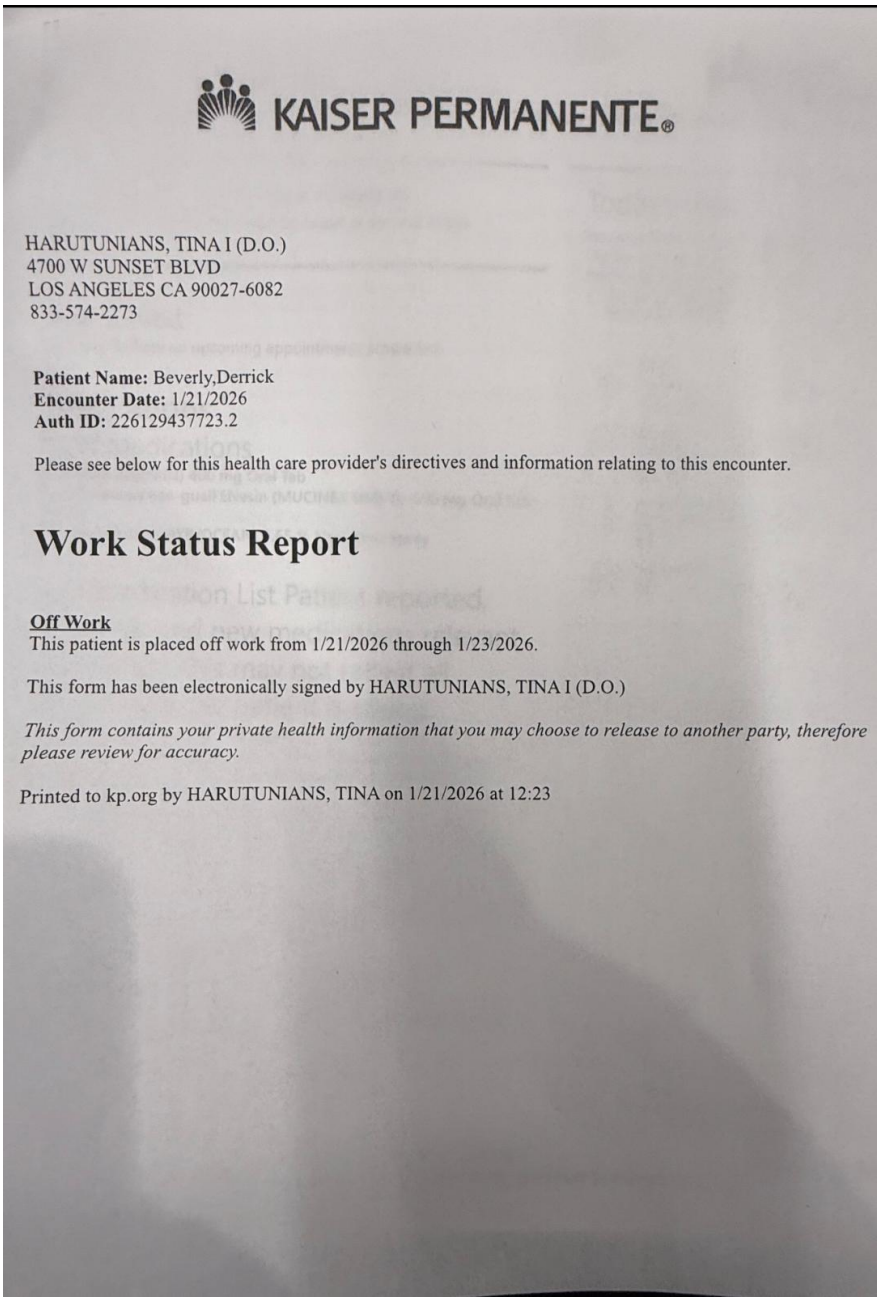
Off Work
This patient is placed off work from 1/21/2026 through 1/23/2026.

This form has been electronically signed by HARUTUNIANS, TINA I (D.O.)

This form contains your private health information that you may choose to release to another party, therefore please review for accuracy.

Printed to kp.org by HARUTUNIANS, TINA on 1/21/2026 at 12:23

UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE



KAISER PERMANENTE®

HARUTUNIANS, TINA I (D.O.)
4700 W SUNSET BLVD
LOS ANGELES CA 90027-6082
833-574-2273

Patient Name: Beverly,Derrick
Encounter Date: 1/21/2026
Auth ID: 226129437723.2

Please see below for this health care provider's directives and information relating to this encounter.

Work Status Report

Off Work
This patient is placed off work from 1/21/2026 through 1/23/2026.

This form has been electronically signed by HARUTUNIANS, TINA I (D.O.)

This form contains your private health information that you may choose to release to another party, therefore please review for accuracy.

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UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE

Exhibit K – One Legal eFiling Rejection (Order #27320557)

One Legal rejection notice for Defendant's prior attempt to e-file his Motion to Vacate and Modify Sanctions Order, with notation "Incorrect document type for motion. Please contact Department 91 to reserve a court date for motion."

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
Branch Name: Stanley Mosk Courthouse
Mailing Address: 111 North Hill Street
City, State and Zip Code: Los Angeles CA 90012

SHORT TITLE: FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY	**CASE NUMBER:** 22STUD06657
NOTICE OF COURT REJECTION OF ELECTRONIC FILING	

The electronic filing described by the summary data below was reviewed and rejected by the Superior Court of California, County of LOS ANGELES.

E-Filing Summary Data
Electronically Submitted By: One Legal
Transaction Number: 26LA00187011
Court received Date: 01/27/2026
Court received Time: 9:26 pm
Notice Generated Date: 01/29/2026
Notice Generated Time: 9:14 am

Documents Electronically Rejected

Notice (name extension)

This electronic filing was rejected based on the following reason(s)
Reject Reason Other: Incorrect document type for motion. Please contact department 91 to reserve a court date for motion.

NOTICE OF PROOF AND PROOF OF ELECTRONIC SERVICE

(MOTION TO VACATE AND MODIFY SANCTIONS ORDER)

PLEASE TAKE NOTICE that on January 31st, 2026, Defendant caused true and

UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE

correct copies of the following documents:

1. Notice of Motion and Motion to Vacate and Modify Sanctions Order;

2. Memorandum of Points and Authorities;

3. Declaration of Derrick LaMont Beverly in Support of Motion to Vacate and Modify Sanctions Order, with Exhibits H–L; and

4. This Notice of Proof and Proof of Electronic Service,

to be served by electronic mail only on Plaintiff's counsel as follows:

Law Offices of Ada R. Cordero-Sacks

Attn: Ada R. Cordero-Sacks

Electronic Service Address (Designated): eservice@loacs.com

Courtesy Copy: ada@loacs.com

On Saturday January 31st, 2026, at approximately 11:58 p.m. Pacific Time,

I electronically transmitted true and correct copies of the above-listed

documents from my email address, dlb@dlbllclaw.com (with backup account:

UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMORANDUM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE

derniercrilamont@yahoo.com), to eservice@loacs.com, with a courtesy copy to ada@loacs.com. The transmission was reported as sent without error. I understand that eservice@loacs.com is the designated electronic service address of record for Plaintiff's counsel in this case.

I did not serve these documents by U.S. Mail or by any method other than electronic mail.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on January 31st, 2026, at Los Angeles, California.

_____

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona Sui Juris